

Tentative Rulings for September 21, 2026 Department 5

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 5 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 782 8254**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2404830	RUST vs PIERCE	MOTION FOR (1) LEAVE TO FILE ANSWER

Tentative Ruling:

CCP §473(b) allows the court to relieve a party from a default caused by “mistake, inadvertence, surprise, or neglect” if the party applies within a “reasonable time, in no case exceeding six months.” “Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed.” (CCP § 473(b).) That requirement demonstrates the moving party’s “good faith and readiness to proceed on the merits.” (*Jimenez v. Chavez* (2023) 97 Cal.App.5th 50, 63.) Substantial compliance may suffice when the party filed a copy of their proposed answer with the court before the court rules. (*Carmel, Ltd. v. Tavoussi* (2009) 175 Cal.App.4th 393, 403.)

Here, the rejected answer (alleged to be for technical reasons) is attached as an exhibit to the supporting declaration. (Exhibit B to the Kane Declaration filed 7/29/26.) Defendant identifies it as the answer she proposes to file, and Plaintiff recognizes it as such. Therefore, the proposed pleading requirement is satisfied.

The record also shows grounds for relief. Defendant acted promptly after the parties’ stipulation was rejected, attempted to file an answer before the asserted entry of default. Defendant also resubmitted the answer after receiving the court’s rejection notice and filed this motion within 6 months. Defendant also answered the FAC, showing an intent to defend. Plaintiff identifies no prejudice and does not oppose relief.

Parties are ordered to appear for the hearing and be prepared to address the following:

- 1. The motion is filed by attorneys for Defendant “Irma Pierce.” However, there are (1) Irma Pierce, an individual, and (2) Irma Pierce, as trustee of the Pierce Trust Dated June 26, 2014. Exhibit “A” to the motion is a copy of the Rejected “Irma Pierce’s Answer to Shelley Rust’s Second Amended Verified Complaint,” which also does not make clear on whose behalf it is sought to be filed. For whom is the request to set aside the entry of default entered June 11, 2026 and leave to file Answer?**

If the court does grant the request to set aside the entry of default as to either or both of capacities of Irma Pierce, moving party must submit a proposed Answer within ten (10) days of the Court’s order, in which it must be clear for whom the Answer is being filed, not just as “Irma Pierce”, but identifying the pertinent capacity.

After the hearing, upon the Court's ruling, moving party is also ordered to submit a proposed order consistent with the Court's ruling by no later than September 21, 2026, by 5:00 p.m.

Plaintiff's request to vacate the 5/14/26 sanctions is not part of Defendant's noticed motion and is not determinative to the requested relief. Plaintiff should file a proper request. Court does not rule on this request.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2502395	HALL vs CITY OF RIVERSIDE	MOTION FOR RECONSIDERATION RE ORDER FOR SANCTIONS

Tentative Ruling:

The motion is granted. The sanctions in the amount of \$250 issued on Cross-Complainant County of Riverside and counsel Christopher Lockwood on July 28, 2026 are vacated.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2506478	RIVERA vs MCC PIPELINE, INC.	MOTION FOR RELIEF UNDER CCP SEC 473(B)

Tentative Ruling:

Under CCP §473(b), the court has broad discretion to relieve a party “upon any terms as may be just...from a judgment, dismissal, order or other proceeding taken against him or her through his or her mistake, inadvertence, surprise or excusable neglect.” CCP § 473(b) notably provides for two distinct types of relief – “discretionary” and “mandatory.” (*Luri v. Greenwald* (2003) 107 Cal.App.4th 1119, 1124.) Under the discretionary relief provision, the court has discretion to allow relief from a “judgment, dismissal, order, or other proceeding taken against” a party or his or her attorney on a showing of “mistake, inadvertence, surprise, or excusable neglect.” (*Ibid*; *see also Martin Potts & Associates, Inc. v. Corsair, LLC* (2016) 244 Cal.App.4th 432, 438.)

Where discretionary relief is sought, as it is here, the burden is on the moving party to show that any neglect was excusable. This means showing the default or adverse action could not have been avoided through the exercise of ordinary care. (*Jackson v. Bank of America* (1983) 141 Cal.App.3d 55, 58.) Evidence the litigant was “busy” and “forgot” is not excusable neglect. (*Andrews v. Jacoby* (1919) 39 Cal.App. 382, 383-384.)

Plaintiffs seek relief under CCP § 473(b) from discovery orders entered after counsel's “good faith but thwarted attempts to delivery discovery, file an opposition to the motion(s), and appear remotely.” They claim these attempts were derailed by software

and connectivity malfunctions. Plaintiffs' verified discovery responses and proofs of service were transmitted on May 1, 2026, and re-forwarded on June 2, 2026, to defense staff, who confirmed receipt. Defendant MCC filed a motion to compel on May 28, 2026, noticed for July 21, 2026, seeing \$2,300 in sanctions, and the Court issued its orders on July 21 and 22, 2026. According to Plaintiffs, since the missed deadlines and non-appearance resulted from mistake, surprise, or excusable neglect, and because the discovery dispute had already been resolved, the order should be vacated.

Defendant MCC served written discovery on May 19, 2026, making responses due on April 21, 2026. On April 22, 2026, defense counsel asserted waiver and demanded verified responses by April 29, 2026. On May 1, 2026, at 8:38 a.m., Plaintiffs' counsel emailed discovery materials, including verified responses and proofs of service, and advised that videos and photos would be transmitted separately. On May 7, 2026, defense counsel reported non-receipt and indicated it would pursue motion practice and sanctions. Plaintiffs' counsel mistakenly believed this referred to a Dropbox expiration notice and reactivated the link. After learning discovery had still not been received, counsel forwarded the May 1 transmission and attachments to defense staff on June 2, 2026, and confirmed receipt. Defendant filed its motion to compel on May 28, 2026. Plaintiffs' counsel's declaration explains delivery delays were caused by a client-management software glitch generating expired batch links; the same malfunction impeded eFiling of the opposition to the motion. While on a pre-planned vacation, Plaintiffs' counsel attempted to appear remotely but could not connect to the Internet to access documents or the hearing. (See Declaration of Plaintiffs' counsel, Adolfo Mediano, Jr.)

Mr. Mediano states the delay in delivery of discovery to defense counsel he cannot explain. Although he later discovered this same mishap occurred when he sent a colleague an email through the same client management software. However, he had already begun to check his email submittals and quickly recovered this error. This has not occurred to all emails sent through this client management system. (Mediano Decl., ¶ 19.) Mr. Mediano states that, apparently, the same client management software had a problem filing his opposition to the Court on the motion to compel hearing. By the time he learned of this, it was way too late to correct it, and he could not retrieve his documents to present orally to the Court. (Id., ¶20.) Mr. Mediano states he has not been in his office long enough to work with IT from the client management software. Two days after returning from vacation, his wife became ill and continues to be hospitalized and thus demands his attention away from the office. (Id., ¶21.)

Plaintiffs' counsel states he always intended to appear for the July 21 and 22 hearings on the motion to compel. This is why he took his seldom used laptop with him so he could retrieve documents on his cloud server. The laptop had worked when away from his office on the Internet on previous occasions, and he never understood why there were two separate hearings. (Mediano Decl., ¶ 15.) It was not until the evening of July 20, 2026 that he discovered that the Court had issued a tentative ruling for the July 21, 2026 motion to compel hearing. He learned this from a text he received from Counsel Chaidez. He was devastated to learn that the Court had never received his opposition.

He failed to read that in order to present arguments he needed to advise the Court and Counsel by a certain time. (Mediano Decl., ¶16.)

The Court accepts the computer malfunction explanation and grants the motion to vacate the discovery order to the extent it/they compelled initial responses. There is no outstanding discovery at this time, and the delay was due to the malfunction. For the same reasons, the Opposition to the subject motions was not on file at the hearing. While this in itself is not counsel's fault, the defense should not have to bear the costs of filing motions due to the malfunction on software that Plaintiffs' counsel chose to use. As to timely requesting order argument, the Court's Department 5 Rules explicitly provide how and by when oral argument must be requested.

The motion is denied in part, granted in part. It is granted as to vacating the July 21 and 22, 2026 orders to the extent they compel discovery responses. It is denied as to vacating the sanctions.

Moving party is ordered to submit a proposed order consistent with this ruling by no later than September 21, 2026, by 5:00 p.m.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2600663	VASQUEZ vs MERCEDES-BENZ USA, LLC	DEMURRER ON COMPLAINT

Tentative Ruling:

The court previously ordered Defendant to file the meet-and-confer declaration by 9/11/26, i.e., 10 days before the continued hearing on 9/21/26. Defendant failed to comply with that order. The demurrer should be overruled on this basis alone; however, even on the merits, the court overrules the demurrer.

Civil Code section 1793.22(e)(2) defines "new motor vehicle," i.e. "a new motor vehicle that is bought or used primarily for personal, family, or household purposes" or a "new motor vehicle with a gross vehicle weight under 10,000 pounds that is bought or used primarily for business purposes by a person" or a demonstrator or "other motor vehicle sold with a manufacturer's new car warranty."

In *Rodriguez v. FCA US, LLC* (2024) 17 Cal.5th 189, 196, the Supreme Court held: "We conclude that a motor vehicle purchased with an unexpired manufacturer's new car warranty does not qualify as a 'motor vehicle sold with a manufacturer's new car warranty' under section 1793.22, subdivision (e)(2)'s definition of "new motor vehicle" unless the new car warranty was issued with the sale." The Court stated that if the Legislature had intended to include used cars with unexpired new car warranties, it would have done so. (*Id.* at 199.) In reviewing the statutory scheme for Song-Beverly, the Court acknowledged consumer goods to mean any "new product or part thereof that

is used, bought, or leased for use primarily for personal, family, or household purposes, except for clothing and consumables. [Citing Civil Code § 1791(a).]” (*Id.* at 200.) “For consumer goods (i.e., new products) that are defective,” they are subject to express warranties under Civil Code section 1793.2(d)(1).” (*Ibid.*) There also implied warranty of merchantability (Civil Code § 1792) and implied warranty of fitness (Civil Code § 1792.1), in which a consumer may sue for breach of these warranties (Civil Code § 1791.1(d)). (*Id.* at 200.) The Court acknowledged the Act provided a distinct provision applying to used products under Civil Code section 1795.5(a) as long as an express warranty is given at the time of sale, while also providing for implied warranties of merchantability and fitness by the distributor or retailer seller under section 1795.5(c). (*Id.* at 200-201.)

In sum, *Rodriguez* establishes that a *used* vehicle does not become a “new motor vehicle” merely because it has warranty coverage at resale. Plaintiff therefore cannot premise a claim for new-motor-vehicle remedies under Civ. Code §1793.2(d) on the certified pre-owned (“CPO”) warranty alone.

However, the pled facts support a different theory. Civ. Code §1795.5 applies to a distributor or retail seller of used consumer goods in a sale accompanied by an express warranty. Plaintiff alleges Defendant issued the CPO warranty in connection with her CPO purchase and acted as a distributor. (Complaint, ¶¶ 8, 9, 17.) These allegations, accepted as true, would be sufficient to allege an express-warranty theory. (*Kiluk v. Mercedes-Benz USA, LLC* (2019) 43 Cal.App.5th 334, 339-40.) The same allegations, together with the timely alleged defects, would also support an implied-warranty theory under Civ. Code §1795.5(c) at the pleading stage.

Defendant’s authorities do not establish that both causes of action fail as a matter of law.

The demurrer is overruled.